DOCUMENT 2 — DESIGN MEMO (REVISION 5, FINAL)

4 October 2026. Revision 5 is the final working draft for outside Ohio family-law counsel and the Legislative Service Commission. Revision 4 is archived in `archive-rev4/`.

Labels: [LAW] verified current law; **[MODEL]** another state; **[DESIGN]** a drafting choice explained here.

The four pillars

1. **Equal parenting.** Equal parenting should be the starting point when a child has two fit parents.
2. **Child support.** Child support funds should be used for the benefit of the child.
3. **Court orders.** Only a court order or the parents' agreement should change a court-ordered parenting schedule.
4. **Enforcement.** A parenting-time order is meaningless if there is no practical way to enforce it.

Roles: courts decide genuine disputes; the county agency (as FSEA) handles routine enforcement; GALs investigate and recommend; prosecutors decide charges; parents parent.

Part 1. Drafting method

- **Draft against current Ohio law.** Nine sections are amended and five enacted. Every mechanism is one Ohio already uses: the 3109.04(E)(1)(b) shared-parenting motion; the Civ.R. 75(N) 28-day hearing; the 2151.35 deadline-with-one-extension; the 3119.63–.65 administrative-determination model; the 3119.22 deviation; and 2919.23 as it stands.
- **Fewest sections.** Revision 5 drops four amendments that a cross-reference or a "notwithstanding" clause can do: 3109.12 (now named in 3109.044(A)), 3109.055 and 3109.04(C) (now covered by 3109.053(D)), 2705.031 (the FSEA's contempt authority now sits in 3109.047(H)), and 3119.01 (the "both are child support" rule now sits in 3119.024(A)).
- **No explanatory prose in the statute.** Rationale lives in this memo.

Part 2. Equal parenting

Status. Once paternity or parentage is legally established, both parents are residential parents and legal custodians, married or not (3109.042). Status is not a schedule; existing orders govern; the rape and sexual-battery bar is sex-neutral. There is no pre-order no-removal rule.

The presumption (3109.044). At the first allocation, including temporary orders and 3109.12 orders: shared parenting with at least 45 percent each. The rebuttal grounds are endangerment; inability or unwillingness; distance or school; repeated denial; and a child's preference. Conflict, objection, self-created noncooperation, and unfound allegations are not grounds. If rebutted: written facts, time maximized, and a 90-night floor that is never a target and not by itself evidence of a crime.

Child's preference at twelve [DESIGN]. Section 3109.044(F) uses the existing in-chambers interview under 3109.04(B) [LAW], including its reasoning-ability screen. A reasoned preference of a child 12 or older is followed unless the court finds in writing that it would endanger the child, is impracticable, or is not the child's own reasoned view. Two guards keep the child from becoming the decision-maker: no child must state a preference, and "the court, not the child, decides." The preference is also an exception to the 90-night floor, so a 16-year-old's reasoned choice can be honored.

Existing orders (3109.04(E)(1)(c)). Equal status may be restored by motion without changed circumstances. Restoration changes no schedule, support, or school. The restored parent's first schedule motion starts from 50/50. No self-help.

Part 3. Court orders control

Section 3109.045 is rebuilt around one rule in (A): **an order stays in effect until a court changes it, except that the parents may agree to a particular deviation.** (B) lists who may not change it and what they may do instead (investigate, recommend, mediate, assist, carry out). Delegation to a non-judge is unenforceable. (C) The GAL's recommendation is evidence only, and the GAL can be cross-examined. (D) The parenting coordinator implements and does not change; independent review on objection. (E) Safety plans need written consent or a court order. (F) Emergency authority and protection orders are preserved.

Part 4. Who pays for court-required services

Rule [DESIGN] (3109.053(B)–(D)): - Parents may agree to use a GAL, parenting coordinator, mediator, evaluator, class, counseling, or supervision, and to divide the cost. - **A parent who requests a service may be charged for it.** This keeps the voluntary principle honest. A parent who moves for a GAL under 3109.04(B)(2)(a) has chosen the service. - Otherwise, a parent who has not agreed cannot be ordered to pay. A service the court requires without agreement must be free to that parent. - Refusal or inability to pay never delays a hearing or restricts rights, time, status, restoration, or expansion. That extends Sup.R. 8.02(I)(2)–(3) [LAW], which already bar delay over unpaid GAL fees. - Preserved: filing fees, court costs, attorney-fee awards, restitution, and remedial orders after a finding of abuse, domestic violence, or interference. - **GAL fees are now included** (a change from Revision 4).

Part 5. Allegations

Unchanged from Revision 4: allegations alone change nothing; only a court restricts; a hearing within 90 days on request; a 36-month limit subject to one 45-day extension; the court sets a hearing at 30 months; the restricted parent's delay is excluded; repackaging restarts nothing; good-faith reports are protected. A knowingly false allegation requires clear and convincing evidence of material falsity, knowledge, and purpose to interfere. No new crime.

Part 6. Enforcement

The FSEA. The county CSEA is also designated the FSEA by one sentence in 3125.10. There is no new agency and no renaming across the Code. FSEA duties are non-IV-D and separately funded (45 CFR 304.20(b)) [LAW].

Access works like support enforcement [DESIGN]. A parent asks the agency for help, as with support. It is optional: a parent may file contempt directly. Free intake; the agency gets the order, notifies the other parent, and decides within 45 days. Unclear orders and safety claims go to the court. Objection within 14 days gets a hearing decided anew within 28 days; otherwise the court enters the determination. One record per order. Referral to the prosecutor and agency-filed contempt after three entered denials in 12 months, a denial of 14 or more days, or concealment or removal. The parenting-coordinator-first step is kept for implementation disputes.

The remedy is time, not money [DESIGN]. Revision 4's $100/$250/$500 payments are deleted everywhere. The automatic remedy is one-for-one make-up time of the same type and duration, plus a recorded violation. Repeated or serious violations lead to contempt (with Ohio's existing graduated penalties in R.C. 2705.05), a change-in-circumstances finding after three in 24 months, referral, and any remedy otherwise available. Section 3109.047(I) says so expressly. This removes the provision most exposed to a "penalty without contempt" challenge.

Separate from support. No withholding support because time was denied (R.C. 3109.05(D)) [LAW]; no parenting violation as an excuse for nonpayment; no support-enforcement tools for parenting violations. With the payments gone, no money flows between the two systems at all.

Child refusal. Reasonable efforts are required; refusal alone does not erase the order; no force.

Part 7. Child support for the child

Principle. If money is designated accountable child support, it must be spent on or saved for the child. If the court intends a general household transfer, it designates parental support.

Both components stay child support [LAW]. 42 U.S.C. 659(i)(2) defines child support to include support of "a child and the parent with whom the child is living." Parental support is defined as support *of the child* through the household, never support of the parent, which would drift toward "alimony" (659(i)(3)). Section 3119.024(A) declares both child support for all state and federal purposes and "neither is spousal support." Withholding, IV-D, arrears, and UIFSA are unaffected.

Designation without a percentage [DESIGN]. The 30 percent rule is deleted. Accountable child support is: 1. the child care cost already in the calculation (R.C. 3119.05(P)); 2. any deviation already added for a child-specific expense (R.C. 3119.22–.23); 3. anything further the parents agree to, or the court designates on request, capped at what the child reasonably requires for the listed expenditures.

The remainder is parental support, and every order states both amounts. This is the narrowest workable rule: it invents no figure, uses numbers the worksheet already produces, and leaves the total unchanged (45 CFR 302.56).

Accounting: where, not what. Once every 12 months through the FSEA; 60 days to respond; payee, date, and amount; statements, invoices, confirmations, or a signed cash statement suffice; no itemizing and no receipts; child savings count; support assigned to the state is exempt. The purpose is transparency, not micromanagement.

Shortfall. A dollar-for-dollar prospective credit against future accountable support, entered by the court after the FSEA objection process. Two legal fixes in Revision 5: - **The credit is a 3119.22 deviation** whose finding is the entered determination. That satisfies 45 CFR 302.56(g)'s written-finding requirement. - **Interstate (3119.024(G)).** The accounting and credit apply only while an Ohio tribunal has continuing, exclusive jurisdiction (R.C. 3115.205). A credit reduces current payments, which only that tribunal may do.

No arrears reduction, no retroactive change (42 U.S.C. 666(a)(9); R.C. 3119.83), no self-help; the order is paid in full until the credit is entered.

Why not a companion bill. The research found no federal or constitutional problem that the text cannot fix (Document 1, § 23). The support provisions stay.

Part 8. Criminal interference

R.C. 2919.23(A)–(D) and *Parra*, *Sprinkle*, and *West* are untouched. Division (E) clarifies only that withholding court-ordered time is without privilege absent a lawful excuse, that a reasonable reading of an unclear order is not knowing or reckless, and that a civil remedy does not make conduct "only civil." Division (F): on a qualifying referral, the prosecutor charges or sends a written declination within 60 days, with one 30-day good-cause extension; no reasons are required; a referral is not guilt; a declination is unreviewable and bars no other remedy.

Part 9. Funding and structure

No new statewide office; no parent-paid FSEA fee; no improper IV-D funding. Access and Visitation grants (42 U.S.C. 669b) only to the extent legally available. No pilot. The FSEA and support components start one year after the effective date.

Part 10. Deletion pass

Revision 5 is **5,502 words**, down from 5,697, even though it adds the child-preference rule, the GAL cost rule, the interstate limit, and the deviation sentence. Cut: the payment schedule and its civil-judgment rules; the 30 percent rule; four section amendments (Part 1); and compressions in 3109.043, 3109.046, 3109.047, 3109.051(K)(4), 2919.23(F), and the uncodified sections. Document 8 has the full list.